

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SHAHID BILAL HASSAN

MR. JUSTICE SHAKEEL AHMAD

Crl.P.L.A. No. 450/L/2026

[Against order dated 17-02-2026 passed by the Lahore High Court, Lahore, in Crl. Misc. No.541-B of 2026]

Javed Iqbal

...Petitioner(s)

Versus

**The State through Prosecutor General Punjab
and another**

...Respondent(s)

For the Petitioner(s): Mr. Amjad Iqbal Khan, ASC a/w petitioner.

For Respondent No.1: Mr. Muhammad Jaffar, Additional PG Punjab a/w Muhammad Naeem, ASI

For Respondent No.2: Mr. Imdad Ali, ASC.

Date of Hearing : 03.06.2026

ORDER

SHAHID BILAL HASSAN, J- The Petitioner seeks leave to appeal against order dated 17-02-2026 passed by the Lahore High Court, Lahore, in Crl. Misc. No.541-B of 2026, whereby his pre-arrest bail application in FIR No.1335/2025 dated 20.10.2025 registered at Police Station Saddar Gojra, District Toba Tek Singh under section 462-J of the Pakistan Penal Code, 1860, ("P.P.C."), has been dismissed.

2. As per crime report, the allegation against the petitioner is that during a raid conducted by a surveillance team of FESCO, he was found abstracting electricity by connecting a cable directly to the main supply line.

3. We have heard learned counsel for parties as well as the learned Addl. P.G. Punjab and have examined the record.

4. At the outset we observe that section 462-J, P.P.C. provides that "*whoever, in order to commit theft of electric power, dishonestly abstracts, consumes, uses, distributes or supplies electric power without authorization shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one million rupees, or with both.*" The offence thus falls squarely within the ambit of the non-prohibitory clause of section 497, Cr.P.C. More importantly, the statutory framework itself recognizes varying degrees of culpability

by vesting discretion in the trial Court to impose imprisonment, fine, or both. At this tentative stage, it cannot be ruled out that even if the prosecution case is ultimately proved, the petitioner may be found deserving of a sentence of fine only. This is yet another factor which weighs in favour of extending the concession of bail, particularly when the law itself contemplates punishment short of imprisonment in appropriate cases.

5. It is now well settled that in offences carrying punishment below the threshold of the prohibitory clause, grant of bail is to be considered favourably as a rule and refusal remains an exception requiring the existence of extraordinary circumstances¹. Recently, in Hakeem alias Peer v. The State (2026 SCMR 792), this Court reiterated that where an offence falls within the non-prohibitory clause, bail ought ordinarily to be granted unless the prosecution is able to demonstrate exceptional circumstances such as likelihood of abscondence, apprehension of tampering with prosecution evidence, or danger of repetition of the offence.

6. We are further of the view that the considerations weighed with the learned High Court do not furnish sufficient justification for denying the concession of bail. The reliance placed upon the statements recorded under section 161, Cr.P.C. and the observation that the investigating agency has found the petitioner involved in the offence amount to attaching undue weight to material which, at this stage, has yet to be tested through the process of trial. Statements under section 161, Cr.P.C. are not substantive pieces of evidence and the opinion formed by the investigating officer regarding the guilt or innocence of an accused is neither conclusive nor determinative of the rights of the parties. It is settled principle of law that *ipsi dixit* of police is not binding upon the Court and the Courts have to form their independent opinion while considering and thrashing the record as well as submissions made at bar. Even, such matters ultimately fall within the exclusive domain of the trial Court after recording and appreciating evidence in accordance with law. With utmost respect, the learned High Court appears to have treated the tentative conclusions of the investigating agency as carrying greater evidentiary value than is legally permissible at the bail stage.

¹ See (2025 SCMR 1955), (2011 SCMR 1708), (2002 S C M R 1797), (2009 SCMR 1488), (2025 SCMR 1130) and (2009 SCMR 1488)

7. Another factor of significance is that the alleged loss attributed to the petitioner is merely Rs. 28,930/-. While any allegation relating to theft of electricity is undoubtedly a matter of concern, the Court cannot lose sight of the constitutional value attached to personal liberty. When the relatively modest financial loss alleged in the present case is weighed against the deprivation of liberty, disruption of livelihood, loss of employment opportunities, social stigma and other consequences necessarily flowing from arrest and incarceration, continued detention appears disproportionate, particularly when the offence itself falls within the non-prohibitory clause. The social and financial cost of arrest, in the peculiar circumstances of the case, outweighs any corresponding benefit likely to be achieved through custodial detention.

8. The settled principle is that where an offence falls within the non-prohibitory clause, liberty is the norm and detention the exception. Since no exceptional circumstance has been shown by the prosecution which may justify departure from this settled rule, the petitioner has succeeded in making out a case for the grant of pre-arrest bail. Accordingly, this petition is converted into an appeal and the same is allowed. The impugned order of the Learned High Court is set aside and the petitioner is admitted to pre-arrest bail subject to his furnishing bail bonds in the sum of Rs.50,000/- with one surety in the like amount to the satisfaction of the learned trial Court.

9. Before parting with this order, however, it is made clear that the findings recorded hereinabove are tentative in nature and would have no bearing upon the trial Court of the case, which would proceed in accordance with law.

JUDGE

JUDGE

Lahore, the
3rd of June, 2026
"Approved for Reporting"
M.A.Hassan